



2025:AHC:176592-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 33336 of 2025

Avanish Kumar

.....Petitioner(s)

Versus

State Of U.P. And 3 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Vinay Kumar Srivastava
Counsel for Respondent(s)	:	Alok Mishra, C.S.C.

Court No. - 3

HON'BLE SAUMITRA DAYAL SINGH, J.

HON'BLE INDRAJEET SHUKLA, J.

1. Challenge has been raised to the demand notice dated 20.09.2024 issued by respondent no.3.

2. At the outset, Sri Anuj Tripathi, Advocate holding brief of Sri Alok Mishra, learned counsel for the distribution corporation objects that the demand has been raised pursuant to an order passed under Section 135 of the Electricity Act, 2003. Without challenging that order no relief may be granted against the consequential recovery.

3. The objection raised is well founded. Unless the primary order creating demand is challenged, no consideration may be offered to the challenge limited to the recovery under the impugned communication. Also, the petitioner may have adequate statutory remedy under the Electricity Act, 2003 read with U.P. Electricity Supply Code, 2005.

4. In view of the above, interference claimed under Article 226 of the Constitution of India is declined, leaving it open to the petitioner to pursue his remedy in accordance with law. If the petitioner avails such remedy within a period of three weeks from today, the same may be dealt with on its

own merit without being prejudiced by any observation made in this order.

5. With the aforesaid observation, present writ petition is stands **disposed of**.

October 6, 2025
Abhilash

(Indrajeet Shukla,J.) (Saumitra Dayal Singh,J.)